



Date: 4/3/18

**AGREEMENT BETWEEN THE CITY OF CHEYENNE AND
AMAZING AMUSEMENTS
FOR AN ATM MACHINE AT THE
CHEYENNE ICE & EVENTS CENTER**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, hereafter "City," whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and Amazing Amusements, hereafter "Provider," whose mailing address is 2830 Forest Drive, Cheyenne, Wyoming 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to permit the Provider to supply a Nautilus Hyosung 2700CE ATM machine to be placed at the City of Cheyenne Ice & Events Center, hereafter "Ice & Events Center," located at 1530 West Lincolnway, Cheyenne, Wyoming. The Provider agrees to provide such services in accordance with Exhibit A attached hereto, incorporated by reference and expressly made a part hereof.
3. **Term.** This Agreement is effective when all parties have executed it and all approvals have been granted. The term of this Agreement shall be from April 1, 2018 through March 31, 2022. This Agreement may be renewed for one (1) additional five (5) year period on the terms mutually agreed upon in writing by the parties.
4. **Payment.** The Provider shall document the surcharge transactions from the ATM machine and the revenue shall be paid according to the calculations set forth in Exhibit A. Upon termination of this Agreement and prior to the removal of the ATM machine by Provider, the Provider shall immediately document surcharge transactions from the ATM machine and disburse the revenue according to the calculations set forth in Exhibit A.
5. **Insurance Requirements.** The Provider shall name the City as an Additional Insured by endorsement on the Provider's General Liability policy and shall provide the City with a copy of the endorsement. Provider shall provide the City with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement. The Provider must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Additional Insurance Information

The Provider shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies, with the exception of workers' compensation and shall provide the City with a copy of the endorsements. Provider shall also carry insurance to cover loss of equipment and goods located at the Cheyenne Ice & Events Center.

Provider shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Provider to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Provider shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Provider's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

6. **General Provisions.**

- A. **Amendments.** Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.
- B. **Applicable Law.** The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.
- C. **Compliance with Laws.** The Provider shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.
- D. **Entirety of Agreement.** This Agreement consisting of four (4) pages, and Exhibit A consisting of one (1) page, represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- E. **Force Majeure.** Neither of the parties to this Agreement shall be liable for failure to perform under this Agreement if such failure arises out of causes beyond control, and without the fault or the negligence of such party. Such causes may include, but are not limited to, Acts of God or the public enemy, fire, flood, epidemic, quarantine restrictions, freight embargoes and unusually severe weather. In every case,

however, a failure to perform must be beyond the control and without the fault or the negligence of the non-performing party.

- F. **Indemnification/Hold Harmless.** The Provider agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Provider's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Provider, or its employees or subcontractors in the performance of this Agreement. The Provider acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.
- G. **Independent Contractor.** The Provider shall function as an independent contractor for the purposes of this Agreement. The Provider shall assume sole responsibility for any debts or liabilities that may be incurred by the Provider in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Provider or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City. The Provider shall pay any and all taxes which are or may become due in connection with performance of this Agreement including, but not limited to, local, state and federal taxes.
- H. **Notice.** All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.
- I. **Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement nor shall payment be made until this Agreement has been reduced to writing and approved by all necessary authorities.
- J. **Governmental Immunity.** The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*
- K. **Termination.** This Agreement will terminate upon the expiration of the terms set forth above, unless extended by agreement of both parties. This Agreement may be terminated for cause without liability in the event the other party fails to perform, provided the non-terminating party is first notified of the breach and given a thirty (30) day period to cure any breach.

7. **Signatures.** In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

AMAZING AMUSEMENTS

April 18 / 11th
Date

Robert Brooks
Robert Brooks, Owner

CITY OF CHEYENNE

Date

Marian J. Orr, Mayor

(SEAL)
ATTEST:

Carol Intlekofer, City Clerk

EXHIBIT A

Location.

1. The ATM machine will be placed in an area determined by the Ice & Events Center, and Provider will anchor the ATM machine to the floor.
2. The ATM machine will operate on a cellular modem and will not require a telephone line or internet connection. The ATM should remain powered on 24 hours a day, 7 days a week, 365 days a year.

Maintenance; Service.

1. Provider will keep the ATM machine clean and in working order at all times.
2. If the ATM machine malfunctions, Ice & Event Center staff will contact Provider as soon as possible and report the issue to ensure the ATM machine remains operable.

Fees; Revenue Distribution; Refunds.

1. Provider will charge a \$3.00 surcharge for cash withdrawal transactions.
2. There will be no fees charged for balance checks or balance transfer transactions.
3. Provider will provide documentation for the surcharge transactions and provide the surcharge payment to the City the first week of every month.
4. The revenue paid to the City will be \$1.50 per surcharge transaction, and the revenue paid to the Provider will be \$1.50 per surcharge transaction.
4. Ice & Events Center staff will not provide refunds to customers using the ATM machine that claim they did not receive all the cash requested and their account was charged for the entire amount. Ice & Events Center staff will need to contact Provider immediately to resolve any customer issues.

Additional ATM Machines.

1. If the City requests additional ATM machines required for large events, Provider will need no less than thirty (30) days notice from the City. However, Provider cannot guarantee additional ATM machines can be supplied for the events.
2. If additional ATM machines are supplied for large events, revenue paid to the City will be \$1.00 per surcharge transaction, and the revenue paid to the Provider will be \$2.00 per surcharge transaction.